

Court No. - 21

Case :- WRIT - C No. - 56689 of 2016

Petitioner :- Dayal Singh Kushwaha

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Devi Prasad Tripathi, Manish Kumar Pandey

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

On the matter being taken up today, Sri Baleshwar Chaturvedi, Advocate informed us that final assessment has been done by the Executive Engineer vide order dated 21.11.2016 and the copy of the said order has also been produced before us and copy of the same has been handed over to Sri D.P. Tripathi, Advocate.

Once final assessment has been done then against the same there is statutory alternative remedy of appeal provided for under Section 127 of Electricity Act 2003.

Once there is statutory alternative remedy available to the petitioner under Section 127 of Electricity Act 2003 read with Electricity Supply Code 2005. In view of this, in our level no interference is being made.

Present writ petition is disposed of.

Order Date :- 30.11.2016

Dhruv